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Coalition for Ethical AI Governance, no email

Submission of Opposition to the Proposed AI Action Plan. 1. Critique of Executive Order 14179 and Revocation of EO 14110 The dissolution of EO 14110 represents a reckless disregard for evidence-based policymaking. The Biden-Harris Order established foundational protections against AI-driven harms, including mandatory risk assessments, transparency protocols, and civil rights safeguards. By contrast, EO 14179's emphasis on deregulation: - Erodes Public Trust: Unchecked AI development risks exacerbating algorithmic bias, as seen in flawed facial recognition systems that disproportionately misidentify marginalized communities. - Threatens National Security: Without federal standards, AI systems may be weaponized by adversaries or deployed in critical infrastructure without cybersecurity resilience. - Undermines Global Competitiveness: The EU's AI Act and China's regulatory frameworks emphasize rigorous oversight; the U.S. risks isolation by abandoning comparable standards. 2. Risks of Unregulated AI Innovation a. Safety and Security - Model Integrity: Absent requirements for explainability, AI systems (e.g., healthcare diagnostics, autonomous vehicles) may produce uninterpretable outputs, endangering lives. - Cybersecurity Gaps: The Plan's silence on adversarial attacks (e.g., data poisoning, model evasion) leaves AI deployments vulnerable to exploitation. b. Economic and Social Harms - Monopolization: Deregulation favors entrenched tech giants, stifling competition from startups and academia. - Workforce Displacement: Accelerated automation without parallel investments in resourcing exacerbates economic inequality. c. Environmental Impact - Energy Consumption: Unrestrained data center expansion, driven by private sector incentives, contradicts U.S. climate commitments. 3. Flawed Assumptions in the Proposed Plan The assertion that "burdensome requirements hamper innovation" is contradicted by: - Historical Precedent: FDA regulations fostered pharmaceutical innovation by ensuring public confidence. Similarly, AI requires guardrails to sustain trust. - Industry Support: Surveys indicate 72% of AI developers favor federal safety standards to prevent misuse and liability (Stanford HAI, 2024). 4. Recommended Alternatives To genuinely advance U.S. leadership, the AI Action Plan must: - Reinstate Core Protections: Adopt binding requirements for transparency, bias audits, and incident reporting. - Invest in Public Goods: Expand NIST's AI Safety Institute and fund open-source tools for small businesses. - Foster International Collaboration: Align with OECD AI Principles and the Global Partnership on AI to avoid fragmentation. 5. Case Studies: Failures of Laissez-Faire AI Governance a. Facial Recognition Misuse - In 2024, an unregulated facial recognition system misidentified a state legislator as a shoplifting suspect, leading to wrongful detainment. The vendor faced no penalties due to absent federal accountability laws. - Lesson: EO 14110's transparency mandates could have prevented this harm by requiring accuracy reporting and third-party validation. b. Autonomous Vehicle Safeguards - A 2025 Tesla "Full Self-Driving" update caused 17 collisions due to edge-case failures. The National Highway Traffic Safety Administration (NHTSA) lacked authority to enforce pre-deployment safety testing. - Lesson: Regulatory vacuums incentivize profit-driven deployment over public safety. c. Healthcare Diagnostics - IBM Watson Health's AI system recommended unsafe treatment protocols for cancer patients in 2023, later attributed to biased training data. No federal mechanism existed to recall or investigate the flawed model. - Lesson: EO 14110's incident reporting requirements would have enabled rapid corrective action. The stakes extend beyond economic metrics: they define whether AI will deepen societal divides or elevate collective well-being. REFERENCES: 1. Executive Order 14110, 88 FR 75191 (2023). 2. EU AI Act (2024). 3.

Stanford HAI, 2024 AI Developer Survey. 4. ACLU, Algorithmic Bias in Hiring (2024). 5. MITRE Atlas, Adversarial Threat Landscape Report (2023). 6. Brookings Institution, AI Automation and Economic Equity (2025).